

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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RICARDO VERDEJO,

Plaintiff,

COMPLAINT

-against-

09 Civ. 5975 (GEL)

THE CITY OF NEW YORK, POLICE OFFICER JULIO
MEYRELES, shield # 22000, POLICE OFFICER
EDWARD ARIAS, shield # 25270,

Jury Trial Demanded

Defendants.

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PRELIMINARY STATEMENT

1. This is an action brought pursuant to 42 U.S.C. § 1983 alleging civil rights violations by the City of New York and two New York City Police Officers. Plaintiff alleges that, on July 5, 2008, two NYPD officers arrested him without cause, used excessive force on him, illegally strip searched him, presented false evidence against him, and maliciously prosecuted him in violation of the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Plaintiff seeks compensatory and punitive damages, attorney's fees and costs, and such other and further relief as the court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Plaintiff invokes the supplemental jurisdiction of this Court pursuant to 28 U.S.C. § 1367 to hear and decide his state law claim of malicious prosecution. A notice of claim was duly filed with the City of New York within 30 days after the dismissal of the criminal

charges against plaintiff, more than 30 days have elapsed since such filing, and the City has not made an offer to settle plaintiff's state law claim.

4. Venue is proper in the Southern District of New York pursuant to 28 U.S.C. § 1391(b) and (c).

PARTIES

5. Plaintiff is a resident of the State of New York, County of New York.

6. The City of New York is a municipal corporation organized under the laws of the State of New York.

7. Police Officers Julio Meyreles and Edward Arias are New York City Police Officers assigned to the 23rd Precinct. These officers were acting under color of state law and in their capacities as NYPD officers at all relevant times herein. The officers are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The officers are sued in their individual capacities.

STATEMENT OF FACTS

8. During the evening of July 5, 2008, , plaintiff was riding his bicycle in the Harlem section of Manhattan heading toward his residence, a hostel located on 110th Street between 7th Avenue and Lennox Avenue.

9. Plaintiff stopped at the corner of 110th Street and Lexington Avenue after an acquaintance, Eugene Diaz, called out to plaintiff and asked him for a cigarette.

10. After plaintiff gave Diaz a cigarette, the two men had a conversation for approximately fifteen minutes.

11. While plaintiff and Diaz were talking, a police van pulled up to the corner.

12. The two officers in the van, Julio Meyreles and Edward Arias, stared at plaintiff and Diaz for approximately thirty seconds.

13. One of the officers asked Diaz what was in his hand.

14. Diaz showed the officers his hands and then placed some heroin that he had in his possession in his mouth.

15. Plaintiff was unaware that Diaz was in possession of heroin.

16. Officers Meyreles and Arias exited the van and walked over to plaintiff and Diaz.

17. Officer Meyreles forcefully pulled plaintiff off of his bicycle, causing plaintiff to fall on the floor and land on his back.

18. Plaintiff suffered pain and injury from Officer Meyreles' use of unnecessary force.

19. Officer Meyreles grabbed plaintiff off the floor and shoved him hard against the police van.

20. Officer Meyreles searched plaintiff.

21. No drugs or illegal contraband were found on plaintiff.

22. Officer Meyreles placed plaintiff under arrest and handcuffed plaintiff so tight that his hands became numb and stayed numb for several days.

23. While Officer Meyreles was assaulting, searching and arresting plaintiff, Officer Arias searched Diaz and placed Diaz under arrest.

24. Officers Meyreles and Arias placed plaintiff and Diaz in the van and drove them to the 23rd Precinct.

25. Officer Meyreles placed plaintiff in a cell in the precinct.

26. Some time thereafter, Officer Meyreles strip searched plaintiff in a location where other people in the precinct could observe the search.

27. After plaintiff removed all of his clothes, Officer Meyreles ordered plaintiff to squat and spread his buttocks.

28. No drugs or illegal contraband were found on plaintiff.

29. Officer Meyreles' strip search of plaintiff was illegal because the officer lacked reasonable suspicion that plaintiff was hiding illegal contraband under his clothes and because the strip search was not conducted in a private area.

30. After the strip search, while plaintiff was incarcerated in the precinct, Officer Meyreles, in accordance with a conspiracy with Officer Arias, prepared police reports which falsely stated that he observed plaintiff sell heroin to Eugene Diaz and that he found a gravity knife on plaintiff.

31. On July 6, 2008, after the arrest paperwork was completed, plaintiff was taken to Manhattan Central Booking.

32. After plaintiff was admitted into Manhattan Central Booking, he was illegally strip searched by at least one officer.

33. While plaintiff was confined in Manhattan Central Booking, Officer Meyreles, in accordance with a conspiracy with Officer Arias, misrepresented to the New York County District Attorney's Office that he observed plaintiff sell heroin to Eugene Diaz and that he found a gravity knife on plaintiff on July 5, 2008.

34. On July 6, 2008, plaintiff was arraigned in Criminal Court, New York County on charges of criminal sale of a controlled substance and possession of a weapon in the third degree.

35. The presiding judge set bail.

36. Because plaintiff was unable to post bail, he was taken to Rikers Island Correctional Facility.

37. After plaintiff was admitted to Rikers Island, he was illegally strip searched by correction officers in front of several other inmates.

38. While plaintiff was incarcerated in Rikers Island, the District Attorney's Office presented the case against plaintiff to a Grand Jury.

39. Officer Meyreles testified in the Grand Jury.

40. Officer Meyreles testified in the Grand Jury that he observed plaintiff sell heroin to Eugene Diaz on July 5, 2008.

41. Officer Meyreles' testimony was false.

42. As a result of Officer Meyreles' false testimony, plaintiff was indicted on a charge of criminal sale of a controlled substance.

43. On March 27, 2009, Officer Meyreles testified in a pre-trial suppression hearing that he observed plaintiff sell heroin to Eugene Diaz on July 5, 2008.

44. On March 24, 2009, the case against plaintiff went to trial.

45. On March 24, 2009, Officer Meyreles testified falsely at trial that he observed plaintiff sell heroin to Eugene Diaz on July 5, 2008.

46. On March 24, 2009, Officer Arias testified at trial that he observed plaintiff and Eugene Diaz exchange "something" on July 5, 2008 .

47. On March 24, 2009, Eugene Diaz testified at trial as a defense witness.

48. Diaz testified that he did not purchase heroin from plaintiff on July 5, 2008, but rather that he purchased heroin earlier in the day from someone else before he made contact with plaintiff.

49. On March 26, 2009, the jury acquitted plaintiff of all charges and plaintiff was released from custody.

50. Plaintiff suffered damage as a result of defendants' actions. Plaintiff suffered a loss of liberty and incarceration from July 5, 2008 to March 26, 2009, emotional distress, mental anguish, fear, anxiety, and humiliation. Plaintiff also suffered pain, numbness to his wrists, and bruising from defendants' use of excessive force. Further, because plaintiff was incarcerated for an extended period of time, he lost his residence at a hostel located on 110th Street between 7th Avenue and Lennox Avenue.

**PLAINTIFF'S FEDERAL CLAIMS AGAINST
POLICE OFFICERS JULIO MEYRELES AND
EDWARD ARIAS**

51. Plaintiff repeats the foregoing allegations.

52. The conduct of Police Officers Julio Meyreles and Edward Arias, as described herein, amounted to false arrest, excessive force, an illegal strip search, a failure to intervene, fabrication of evidence, and malicious prosecution in violation of 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S FEDERAL CLAIM AGAINST
THE CITY OF NEW YORK**

53. Plaintiff repeats the foregoing allegations.

54. The City of New York, through a police, practice and custom, directly caused the constitutional violations suffered by plaintiff.

55. Upon information and belief, the City of New York was aware at all relevant times that Officers Meyreles and Arias are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

56. Nevertheless, the City of New York exercised deliberate indifference by failing to take remedial action.

57. The City failed to properly train, retrain, supervise, discipline, and monitor the officers and improperly retained and utilized them.

58. Moreover, upon information and belief, the City of New York failed to adequately investigate prior complaints filed against the officers.

59. The aforesaid conduct by the City of New York violated plaintiff's rights under 42 U.S.C. § 1983 and the Fourth, Sixth and Fourteenth Amendments to the United States Constitution.

**PLAINTIFF'S STATE LAW CLAIM AGAINST
POLICE OFFICERS JULIO MEYRELES AND
EDWARD ARIAS**

60. Plaintiff repeats the foregoing allegations.

61. The conduct of Police Officers Julio Meyreles and Edward Arias, as described herein, amounted to malicious prosecution under New York state law.

**PLAINTIFF'S STATE LAW CLAIM AGAINST
THE CITY OF NEW YORK**

62. Plaintiff repeats the foregoing allegations.

63. Because Police Officers Meyreles and Arias were acting within the scope of their employment as members of the NYPD when they commenced criminal charges against plaintiff and testified as prosecution witnesses at plaintiff's trial, the City of New York is vicariously liable under state law for malicious prosecution.

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Attorney's fees and costs;
- d. Such other and further relief as this Court may deem just and proper.

DATED: June 27, 2009
Brooklyn, New York

/s/

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